

TENTATIVE RULING

Case: **Driver v. Driver Dry Creek Farms**
 Case No. CV2026-1150

Hearing Date: **August 5, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: Singh v. Cuna
Case No. CV2024-0951

Hearing Date: August 5, 2026 **Department Thirteen** **9:00 a.m.**

County of Yolo, Mariela Cuna, and Marion Reids' request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of the existence of the court documents (nos. 1-18), the Court does not take judicial notice of truth of facts asserted therein except for orders, findings of fact and conclusions of law, and judgments. (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22; see also *People v. Moore* (1997) 59 Cal.App.4th 168, 178; Evid. Code, § 452, subd. (d).) The Court takes judicial notice of the fact asserted in no. 19. (Evid. Code, § 452, subd. (h).)

Defendants' motion for judgment on the pleadings as to the first cause of action (interference with familial relations) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) "To support a § 1983 claim of judicial deception, a plaintiff must show that the defendant deliberately or recklessly made false statements or omissions that were material to the finding of probable cause." (*Greene v. Camreta* (9th Cir. 2009) 588 F.3d 1011, 1035, vacated in part on other grounds, citation and quotation marks omitted; see also *Benavidez v. Cty. of San Diego* (9th Cir. 2021) 993 F.3d 1134, 1146.) Based on the detention hearing transcript, the juvenile court found a willful violation of the visitation rules, while also recognizing the role of domestic violence. (Defendants' RJN, Exhibit A, pp. 66-67.) Therefore, the Court finds that defendants have failed to show the alleged false statements regarding the mother's physical injuries were immaterial to the juvenile court's October 28, 2022, order. (*Greene, supra*, 588 F.3d at p. 1035; Complaint, ¶¶ 34, 40, 45, & 57-59.) As to collateral estoppel, defendants have not established the first, second, and third elements. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.) Specifically, while this Court can take judicial notice of the juvenile court's orders, it cannot take judicial notice of testimony offered during those hearings. (See *Garcia, supra*, 176 Cal.App.3d at p. 22.)

Defendants' motion for judgment on the pleadings as to the second cause of action (interference with parental rights) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Defendants have failed to establish that plaintiffs Kamlesh Singh and Navindra K. Singh's complaint does not state facts sufficient for this cause of action. (See *United States v. Wolf* (9th Cir. 2012) 699 F.3d 1082, 1091-1092; Complaint, ¶¶ 47-48.) Further, like the first cause of action, defendants have not established the first, second, and third elements for collateral estoppel. (*Lucido, supra*, 51 Cal.3d at p. 341; *Garcia, supra*, 176 Cal.App.3d at p. 22.))

Defendants' motion for judgment on the pleadings as to the third cause of action (substantive and procedural due process) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) As defendants have not shown the first cause of action is deficient, defendants fail to establish that the complaint does not state facts sufficient for this cause of action. (*Ibid.*)

Defendants' motion for judgment on the pleadings as to the fourth cause of action (violation of Fourth Amendment rights) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Defendants have failed to show that plaintiffs (as the parents) cannot maintain a cause of action, under the Fourth Amendment, based on the removal of their children. (*Keates v. Koile* (9th Cir. 2018) 883 F.3d 1228, 1236-1237.)